

Part IV. Membership

No. 08

Membership

Code

Cite this instrument as No. 08, Membership.

29 September 2026

Summary

Does not take anyone off the current list. It is the section 10 path if electors later assume control, with a written decision and an appeal.

Indian Act subsection 10(4) protects a right to be on the list that a person already had.

Part 1. Purpose and the limit

1.1 This instrument sets how a new application is decided if, and only if, the electors assume control of membership under Indian Act section 10.

1.2 Indian Act subsection 10(1) says a band may assume control if it establishes written membership rules and, after appropriate notice, a majority of the electors consent. Subsection 10(2) requires the same consent to establish the rules and a review mechanism. Subsection 10(4) says the rules must not deprive a person who had the right to be on the Band List immediately before the rules of that right by reason only of a situation that existed, or an action taken, before the rules came into force.

1.3 Until the Minister gives notice under subsection 10(7) that the band has control, the Department's rules remain. This instrument does not remove anyone from the current list. A council letter that purports to remove a person before that notice is void. The appeal body must post the letter within 7 days of receiving it.

Part 2. Applications after control passes

2.1 An applicant files a written application with the records officer. The records officer must acknowledge it in writing within 14 days and must say what evidence is missing.

2.2 Council must decide in writing within 90 days of a complete application. The decision must say yes or no, cite the rule, and tell the applicant about the 30 day appeal. A decision that misses day 90 is a deemed refusal on day 91. The applicant may appeal on day 92.

2.3 A person who is immediate family of the applicant must not vote on the application. The vote is void if that person votes, and the application must be reheard within 30 days by councillors who are eligible. If quorum cannot be met, the appeal body decides within 45 days.

Part 3. Review

3.1 The applicant, or any member, may appeal to the appeal body within 30 days of the decision or the deemed refusal. The appeal body must decide within 45 days. It must not delete a person protected by Indian Act subsection 10(4).

3.2 Council must give the Minister the notice required by subsection 10(6) within 7 days of the elector vote that assumes control, with a copy of these rules. Council must post the Minister's reply within 7 days of receiving it. If council does not send the notice, the vote still stands, the appeal body posts the omission on day 8, and council honoraria stop until the notice is sent.

Part 4. Amendment

4.1 Council must not amend this membership instrument by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

4.2 The electoral officer posts the full text at least 45 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

4.3 The change passes only if a majority of all electors vote yes. A majority of the ballots is not enough. Indian Act subsection 2(3)(a) uses that count for a power of the band. If the count is not met, the text does not change.

4.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

4.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.